

Alauddin v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 September 2019 · Writ - C No. 28850 of 2019 · **Writ dismissed; petitioner may seek Clause 6.14 instalments.**

HEADNOTE

A writ against an electricity recovery citation was dismissed for want of clean hands where the consumer concealed an earlier petition already relegated to Clause 6.16. The citation was treated as consequential to the unpaid bill. A consumer ready to pay in instalments may approach the Executive Engineer under Clause 6.14.

FACTUAL SUMMARY

Alauddin challenged a recovery citation dated 25 June 2019 for Rs. 2,75,025 as electricity dues. He had earlier filed Writ-C No. 31201 of 2018 disputing the correctness of the bill; that petition was disposed of on 14 September 2018 with liberty to take the Clause 6.16 Supply Code remedy. The present writ did not disclose that earlier proceeding. The recovery citation issued after the bill remained unpaid.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

recovery citation; clean hands; Clause 6.14 instalments

HOLDING

Where a consumer, already relegated by an earlier writ to the Clause 6.16 Supply Code remedy, challenges a recovery citation without disclosing that proceeding, the Court will decline discretionary jurisdiction for want of clean hands and dismiss the writ. The recovery citation is consequential to the unpaid bill. If the consumer is ready and willing to pay the dues in instalments, he may approach the Executive Engineer under Clause 6.14. ¶ 1

FLAG Order cites 'U.P. Electricity Supply Code, 2002'; Clauses 6.14 and 6.16 are of the 2005 Code.

PRINCIPLE TAGS

installment-payment-clause-6.14 A writ against an electricity recovery citation was dismissed for want of clean hands where the consumer concealed an earlier petition already relegated to Clause 6.16. The citation was treated as consequential to the unpaid bill.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The earlier writ had relegated the consumer to Clause 6.16; this Court did not examine the bill or the recovery on merits. ¶ 1